भारतसरकार/Government of India
वित्तमंत्रालय /Ministry of Finance
कार्यालय/Office of
मुख्य सीमाशुल्क आयुक्त
THE CHIEF COMMISSIONER OF CUSTOMS
मुंबईअंचल-III /MUMBAI ZONE III
छत्रपति शिवाजी महाराज अंतर्राष्ट्रीय हवाई अड्डा,
मुंबई-400099
CSM International Airport, Mumbai-400099

सत्यमेव जयते

भारत सरकार

भारतीय सीमाशुल्क

Minutes of the Customs Clearance Facilitation Committee (CCFC) Meeting held on 23.01.2024

Meeting of the Customs Clearance Facilitation Committee (CCFC) chaired by Smt. Prachi Saroop, Chief Commissioner of Customs, Mumbai Zone-III was held on 23.01.2024 at 1500 hrs. in the Conference Room, Air Cargo Complex, Sahar, Mumbai.

2. Following representatives of the Partner Government Agencies (PGAs) and other stakeholders were present in the meeting:

Sr. No.	Name of the Representative (Shri/Smt./Ms.)	Name of the Organization
1.	Dushyant Mulani	Brihanmumbai Customs Broker Association (BCBA)
2.	Sanjeev Harale	BCBA
3.	Ketan Desai	BCBA
4.	Paresh Sangrani	BCBA
5.	Kaushak Thakker	BCBA
6.	Neha Nilesh Doshi	Department of Posts
7.	R.S. Pal	Department of Posts
8.	Rakesh Burman	WCCB
9.	Dr. Vageesh Pandey	Plant Quarantine
10.	Benedict D'Souza	MIAL
11.	Rafiq Shaikh	MIAL
12.	Nandan Kanchan	MIAL
13.	Edwin D'Souza	MIAL
14.	Amit Kadam	MIAL
15.	Mohamed Nasir	MIAL
16.	Gaurav Sabnis	MIAL
17.	PramodPatil	CDSCO
18.	Manita Churi	CDSCO
19.	V. Sooraj	CDSCO
20.	V.P. Salunke	Air India Airport Services Ltd.
21.	Hiren Joshi	Air India Airport Services Ltd.
22.	Pradeep Nair	RSSL
23.	Shailesh Sharma	Air Cargo Agents Association of India
24.	Farokh Hansotia	Air Cargo Agents Association of India
25.	Dr. Vignesh	Animal Quarantine
26.	Sandeep B. Kadam	Silver Wings C& F Services
27.	Dr Karuna Dhale	FSSAI
28.	Kadam Jankiram	FSSAI

The Customs department was represented by the following officers :

Sr. No.	Name (Shri/Smt/Ms.)	Designation	Commissionerate
1.	G. Shiril Saroj	Commissioner	Import
2.	Nilank Kumar	Commissioner	General
3.	Harish Dharnia	Commissioner	APSC
4.	Satish Kumar	Addl. Commissioner	General
5.	Pawan Kumar Khetan	Addl. Commissioner	Import
6.	Mahendra K Sharma	Addl. Commissioner	Export
7.	Sarika Shah	Addl. Commissioner	CCO, MZ-III
8.	Mohan Singh Dorai	Addl. Commissioner	APSC
9.	Ashwini Adivarekar	Addl. Commissioner	Export
10.	V. I. Singh	Joint Commissioner	General
11.	Jitesh Kumar Jain	Joint Commissioner	Import
12.	Praveen Kumar	Deputy Commissioner	CCO, MZ-III
13.	Deepak Dhamane	Deputy Commissioner	Import
14.	F. F. Nazareth	Asstt. Commissioner	General
15.	Sanjay C. Banavalikar	Asstt. Commissioner	General
16.	Praveen Kumar	Asstt. Commissioner	Import
17.	P. Sreerama Murthy	Asstt. Commissioner	Import
18.	P. Jagan Mohan Reddy	Asstt. Commissioner	Import
19.	G.L. Meena	Asstt. Commissioner	Import
20.	Jagdish Chandra Barjo	Asstt. Commissioner	Import
21.	Anil P. Mohite	Asstt. Commissioner	Import
22.	Shashikant Y. Mane	Asstt. Commissioner	Import

3. The Additional Commissioner of Customs, CCO, Mumbai Zone-III welcomed all the participants.

4. During the course of Power Point Presentation, the agenda points for the CCFC Meeting were discussed.

Agenda Point – 1: Long Time taken to shift the cargo from Courier Mode to Cargo Mode.

The APSC Commissioner highlighted that a trial run for online processing of trans-shipment was successfully conducted on 11.01.2024 with the help of DG Systems. A PN has been framed which will be issued shortly, bringing the time to shift the cargo from Courier Mode to Cargo Mode under 24 hours.

(Action to be taken by – APSC)

Agenda Point – 2: Improvement in Infrastructure and Service Levels required at MIAL at ACC.

a. MIAL informed that 4 projects are ongoing in Customs, out of which Pre Engineered Building (PEB) Shed (Pillar as well as Shed Work which are 80% complete) and a project of FPS (Fire Protection Safety) will be completed by May, 2024.
b. The BCBA informed that no particular investment has come up for revamping the infrastructure at ACC, except one shed for General Cargo and Export Cargo and one for perishable temperature controlled cargo. However, for majority of general cargo, there has been no increase in warehousing space and truck docking space.
c. The BCBA informed that the ACC was built with capacity to handle 150-200 trucks, but it is handling almost 1400-1600 trucks daily.
d. BCBA requested that there should be a time bound improvement in the infrastructure for general import and general export cargo. Further, the space needs to be decongested, with more warehousing space and more loading base for trucks.

e. The Commissioner (General) who informed that no concrete action plan was submitted by MIAL.
f. MIAL informed that they are coming up with a New Import Terminal-2 Project, which is behind the old ATC Terminal Area, that can handle 5 lakh metric ton cargo per annum. When asked for a timeline on the project, MIAL informed that they can provide the timeline only after confirmation with their project teams.
g. When enquired about the space for customs officers, MIAL informed that 60-75 % work has been completed on SRF-5 and Heavy Shed Examination Area.
h. Commissioner (Import) informed there is no progress seen on the space for Customs Officers.
i. The Chair directed the Commissioner (General) to conduct a meeting with appropriate authorities of MIAL and requested him to monitor this issue personally and asked for a status report in this regard.

(Action to be taken by – General, ACC)

Agenda Point - 3: Wrong Examination Order being given by FAG officers leading to considerable difficulties being faced by trade.

a. Commissioner (Import) informed that these issues are coming up due to other Zone FAGs and can only be taken up in the NAC.
b. BCBA submitted that earlier 100 % examination orders were prescribed to re-import, second hand goods or where there were some intelligence alerts by any agency. Now, instead of standard examination order, these instructions are coming, over-riding the standard examination order. The Chair requested to BCBA to provide last 6 months data to back up their submissions.
c. BCBA submitted that in some cases, Bills of Entry were not selected for examination, but the RMS targets prescribe for detailed examination to be carried out, thus nullifying the RMS Facilitation. It was informed that the matter was already taken up with NCTC, hence it was decided to close the point.
d. BCBA further submitted that in some cases, instead of giving First Check, the RMS is giving Second Check straightaway. The Chair suggested taking up the matter with DG Systems and directed the Additional Commissioner, CCO to send a letter to DG Systems, in this regard.
e. At this point, the Commissioner (Import) submitted that many consignments are pending at Importer/CHA end, impacting the dwell time. BCBA was asked to ensure co-operation in the clearance of cargo.

(Action to be taken by – CCO, BCBA)

Agenda Point - 4: Pending Bond and Bank Guarantee under CAROTAR

a. The BCBA requested setting up of a particular counter or online dashboard to check the status of Bond and Bank Guarantees (BG) pertaining to Bills of Entry provisionally assessed due to CAROTAR.
b. Commissioner (Import) informed that a total of 155 cases were pending, out of which replies in 19 cases have been received and the Bond and BG have been cancelled. For the remaining 136 cases, the Commissioner (Import) was requested to take necessary action.

(Action to be taken by – Import)

Agenda Point - 5: Hidden Instructions appearing at the time of Faceless Assessment – Instances of FAG Officers giving instructions in the comments column which are hidden and are not visible to the trade are often delaying clearances.

Commissioner (Import) informed that this issue has already been raised in NAC Meeting. The Chair requested the BCBA to submit a detailed representation with sample BEs, so that the matter can be raised in the NAC platform.

Agenda Point - 6: Real time updation of the Inward Date and time to be captured in EDI System – Updation of Inward Date and time in the portal is not being captured properly. (For eg. 12 :12)

BCBA submitted that the updation of Inward date and time in EDI System is not being capturedcorrectly. BCBA suggested the capture of Inward time to be done automatically, instead of manual entry by officers. Since the matter pertains to DG (Systems), the issue will be examined.

(Action to be taken by – Import)

Agenda Point - 7: Shortage of Customs Staff causing Pendency of EMS Articles on day to day basis. (Previously 5 Supdts. were available for Custom Clearance, but presently only 4 are available, no reliever is provided against leave of any one of the Supdts. which leads in delay of clearance of articles received in CED Section), No Separate Supdt. Level Officer is deputed for clearance of articles booked under DNK.

The Chair requested the Commissioner (APSC) and representatives from postal department to expedite the disposal process.

(Action to be taken by – APSC, Department of Post)

5. MIAL informed that 120 metric tons of cargo has been disposed off in last 4 months and 40-50 metric tons is still pending as the weight limit has been set at 115 metric ton annually by MPCB. They are awaiting NOC from MPCB to dispose the pending cargo.

6. BCBA put forward the issue of absence of WCCB and AQ officials from Air Cargo Complex on daily basis. The representative from AQ submitted that there is shortage of staff in their department and therefore, they were unable to be present at Air Cargo Complex daily. The Chair requested to take up the matter with Regional Deputy Director, WCCB, WR, Navi Mumbai.

(Action to be taken by – Import)

7. The representative from WCCB submitted that in respect of Action Point 1 of NTFAP 2023-2026 i.e. Sensitization of Customs Brokers about the provisions of Wild Life (Protection) Act, CITES and regulatory requirements for the import and export of wildlife related consignments", a program should be conducted by this office to sensitize the concerned officials and CHAs. The Chair requested BCBA to propose a program in this regard.

(Action to be taken by – BCBA)

8. BCBA informed regarding requirement of Gate Scanner at ACC for Export Cargo. MIAL informed that only 3 cases of ODC (Over-dimensional Cargo) packages have come to light in the last two months and it was further informed that all the three cases examinations was done by MIAL in 30 minutes and there was no hindrance to the export clearance. Further, it was submitted that installment of Gate Scanner is not a cost effective measure. BCBA was requested to submit data to substantiate the requirement of ODC.

(Action to be taken by – BCBA)

9. The BCBA submitted that the status of queries raised and status of release of cargo on new online system of AQ are not visible to the trade. The representative from AQ submitted that in their system, only the importer, not the Custom Broker can see the query.

Meeting ended with a vote-of-thanks to the Chair and all attendees.

This issues with the approval of the Chief Commissioner, Mumbai Customs Zone-III.

06.02.2024

Deputy Commissioner

CCO, Mumbai Zone-III

Copy to:

1. The Under Secretary (Cus.IV), CBIC, North Block, New Delhi.
2. All Pr. Commissioner/Commissioner of Customs, Mumbai Zone-III.
3. All the Members of CCFC (Through e-mail).
4. The DC/EDI, ACC (With a request to upload the minutes on the zonal website)